

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 1**  
**Honorable Eunice Lee, Presiding**  
TBD, Courtroom Clerk  
191 North First Street, San Jose, CA 95113

**DATE: June 4, 2026 TIME: 9:00 A.M. and 9:01 A.M.**

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.**  
**Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,**  
**in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

**\*\*Please specify the issue to be contested when calling the Court and counsel\*\***

**LAW AND MOTION TENTATIVE RULINGS**

|                        |            |                                                |                                                                                                |
|------------------------|------------|------------------------------------------------|------------------------------------------------------------------------------------------------|
| <a href="#">LINE 5</a> | 24CV441593 | Fuheng, Inc. et al<br>vs Zihan Liu             | <b>Motion for Attorney's Fees and Sanctions</b><br>Scroll down to Line 5 for Tentative Ruling. |
| <a href="#">LINE 6</a> | 24CV469921 | Aparna Palaparthi<br>vs Padma Kastury<br>et al | <b>Petition to Compel Arbitration</b><br>Scroll down to Line 6 for Tentative Ruling.           |

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|------------------------|------------|----------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| <b>9:01<br/>A.M.</b>   |            |                                                                      |                                                                                       |
| <a href="#">LINE 1</a> | 17CV313165 | Ivy Mei vs<br>Renuer<br>Incorporated et al                           | <b>Order of Examination</b><br>Parties to appear.                                     |
| <a href="#">LINE 2</a> | 22CV392899 | Sierra Lumber &<br>Fence Co., Inc.<br>vs Aldolfina<br>Gonzalez et al | <b>Return of Warrant</b><br>Parties to appear.                                        |
| <a href="#">LINE 3</a> | 23CV412237 | Stephen and Kim<br>McNulty vs<br>Jeffrey Nguyen et<br>al             | <b>Motion to Withdraw as Attorney &amp; Motion to Lift Stay</b><br>Parties to appear. |

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**9:00 A.M.**

**Calendar Lines # 3**

**Case Name** Jeremy Williams vs Ford Motor Company et al

**Case No.** 24CV447980

**Motion for Summary Judgment/Adjudication**

Before the court is Ford Motor Company's motion for summary judgment/ adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

**I. BACKGROUND**

In this action, plaintiff Jeremy K. Williams ("Plaintiff") alleges, among other things, defendant Ford Motor Company ("Ford") and others violated the Song-Beverly Consumer Warranty Act ("Act") with regard to a 2024 Ford Mustang vehicle ("Vehicle"). In particular, Plaintiff alleges the Vehicle suffered a Transmission Defect. (Complaint, ¶¶24 – 35).

On September 24, 2024, Plaintiff filed a complaint against defendant Ford and others asserting causes of action for:

- (1) Violation of subdivision (d) of Civil Code section 1793.2
- (2) Violation of subdivision (b) of Civil Code section 1793.2
- (3) Violation of subdivision (a)(3) of Civil Code section 1793.2
- (4) Breach of the Implied Warranty of Merchantability
- (5) Negligent Repair
- (6) Fraudulent Inducement - Concealment

On November 1, 2024, defendant Ford filed an answer to Plaintiff's complaint.

On March 16, 2026, defendant Ford filed the motion now before the court, a motion for summary judgment/ adjudication of Plaintiff's complaint.

On March 19, 2026, the court issued an order advancing the hearing date of defendant Ford's motion for summary judgment/ adjudication from November 17, 2026 to June 4, 2026.

On March 20, 2026, defendant Ford filed and served (electronically and personally) Plaintiff with amended notice of its motion for summary judgment/ adjudication.

Based on a hearing date of June 4, 2026, Plaintiff's opposition was due May 15, 2026. (See Code Civ. Proc., §437c, subd. (b)(2)—"An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing.") Plaintiff has not filed any timely opposition.

**II. LEGAL STANDARD**

Pursuant to Code of Civil Procedure section 437c(a)(1), "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." "A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., §437c, subd. (p)(2)).

"The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., §437c, subd. (c)).